

ILLINOIS TECH | College of Computing

ITMM 485 / 585
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Legal and Ethical Issues in
 Information Technology



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Ethical Concepts and Theories

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**Ch9: Regulating Commerce and
 Speech**
**P2: Spam, Free Speech,
 and Censorship**



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Learning Objectives 1

Upon completion of this lesson the students should be able to:

- Define “regulation by code”
- Describe Digital Rights Management and explain why it is controversial
- Describe spam email and discuss if some forms of spam can be defended
- Explain the difficulties involved in balancing free speech and censorship in online contexts and forums

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Learning Objectives 2

Upon completion of this lesson the students should be able to:

- Describe and discuss issues associated with online distribution of pornography
- Discuss whether online pornography should be censored
- Discuss issues associated with what some view as excessive online speech: hate speech as well as speech that can cause physical harm to others
- Define “network neutrality” and explain the implications this principle has for the future of Internet regulation

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Module Objectives

Upon completion of this lesson the students should be able to:

- Describe spam email and discuss if some forms of spam can be defended
- Explain the difficulties involved in balancing free speech and censorship in online contexts and forums

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Spam

- Another key issue affecting Internet regulation is *spam*, which has implications for regulating both commerce and speech.
- Miller and Moor (2008) point out that according to some estimates, as much as 80% of email sent could qualify as spam.
- But they also note that there are “dramatically different definitions” of what can count as spam.

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Spam (Continued)

- Spam is generally described as e-mail that is:
- *unsolicited*,
- *promotional*,
- sent in *bulk* to multiple users.
- Can these three characteristics distinguish spam from other forms of e-mail?

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Spam (Continued)

- Because spam is *unsolicited*, it can also be viewed as a form of communication that is nonconsensual.
- But not all nonconsensual e-mail that one receives should necessarily be considered spam.

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Spam (Continued)

- Although Spam is viewed as email that it is *commercial*, not all commercial email is spam.
- Some commercial email we receive can be in the form of advertisements that we have authorized a commercial Web site to email that information.
- For example, you could have registered on an email distribution list for a department store at which you frequently shop, requesting to be informed about upcoming sales and discount items.
- The emails you receive from this site, while commercial or promotional in nature, would not qualify as spam.

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Spam (Continued)

- Spam is also distributed in *bulk*, but not all email distributed in that form necessarily qualify as spam.
- For example, some messages sent in bulk form (i.e., to an e-mail list) might have been directed to people in the group who are known by the sender.
- Also, there could be some personal or professional connection between the sender and receiver of the e-mail message.
- So, our initial working definition of spam as email that is “unsolicited, promotional, and sent in bulk” to multiple users would not seem adequate.

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Spam (Continued)

- Miller and Moor believe that much of the popular discussion about spam in terms of what they describe as Unsolicited Commercial Bulk Email (UCBE) is both “confused and degraded” because it fails to distinguish between:
- UCBE that is “deceptive” and “intended to harm”
- UCBE that is not.

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Spam (Continued)

- Miller and Moor also believe that the problems affecting email spam can be better analyzed by focusing on a series of distinct, but interrelated, criteria such as the:
- content of the email,
- intent of the sender,
- consequences of the receiver,
- consent of the receiver,
- relationship between the sender and the receiver,
- accountability of the sender and the degree of deception,
- number of identical emails sent.

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Spam (Continued)

- Miller and Moor note that it is possible to distinguish between UCBE advertisements that
- “misrepresent and are fraudulent”
- “present information in a favorable light.”
- They refer to the former as *F-UCBE* and distinguish it from the non-fraudulent version they call *NF-UCBE*.
- Miller and Moor also note that *NF-UCBE* requires a more complex ethical analysis than *F-UCBE*.

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Why Is Spam Controversial?

- Spinello (2006) notes that spam “shifts costs”
- from the advertiser
- to several other parties, including ISPs and the recipients of their service.
- Because others must bear the cost for its delivery, Spinello notes that spam is not “cost free.”

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Spam Controversies (Continued)

- Spinello also points out that spam consumes valuable computer resources because it:
- is sent through ISPs and thus results in wasted network bandwidth;
- puts an increased strain on the utilization of system resources such as disk storage space.

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Is Spam Unethical?

- Spinello also argues that spam is morally objectionable because it:
 - a) has harmful consequences (e.g., it degrades the “fragile ecology” of the Internet).
 - b) violates the autonomy of Internet users (e.g., it does not respect individuals who use email).
- So, Spinello believes that spam is unethical on both utilitarian and deontological grounds (see Chapter 2 for a description of these theories).

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Is Spam Unethical? (Continued)

- Miller and Moor argue that an adequate ethical analysis of spam also needs to take into consideration criteria such as accountability and deception
- For example, generally, the “more deceptive the content and the less accountable the sender, the more blameworthy the sender becomes.”
- Miller and Moor believe that fraudulent UCBE should always be condemned, but that some cases of *NF-UCBE* might be ethically justifiable.

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What Can Be Done About Spam?

- Miller and Moor note that spam is analogous in some ways to unsolicited commercial phone calls.
- They point out that those kinds of calls have been significantly reduced in the U.S. through legislation, even though they have not been eliminated.
- But Miller and Moor also note that because of the “open” nature of Internet architectures and protocols, spam has been far more resistant to the kinds of legislative and technological solutions used to discourage unsolicited commercial phone calls.

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The CAN SPAM Act

- The U.S. Congress passed the CAN SPAM (Controlling the Assault of Non-Solicited Pornography and Marketing) Act, which went into effect in 2004.
- This Act specifies criminal penalties that include a fine of \$250 for each spam email.
- But critics of the CAN SPAM Act note that spammers who use ISPs outside the U.S. to send their spam e-mail cannot be prosecuted under this act.

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Free Speech vs. Censorship in Cyberspace

- Should certain forms of speech on the Internet be censored?
- Do all forms of speech (at least in the U.S.) deserve protection under the constitutional guarantee of free speech.

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Free Speech (Continued)

- According to the First Amendment of the U.S. Constitution, Congress shall make no law...abridging the freedom of speech, or of the press...
- However, the right to free speech is a *conditional* right only (not an absolute right).

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Censorship

- Mathiesen (2008) characterizes *censorship* as “limiting access to content,” by deterring either:
 - a) the speaker from speaking, or
 - b) the hearer from receiving the speech.

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Censorship (Continued)

- According to Mathiesen, to censor is to: *restrict or limit access to an expression, portion of an expression, or category of expression, which has been made public by its author, based on the belief that it will be a bad thing if people access the content of that expression.* [Italics Mathiesen]

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Censorship (Continued)

- Catudal (2004) notes that a useful distinction can be drawn between two kinds of censorship:
- censorship by *suppression*,
- censorship by *deterrence*.
- Both forms of censorship presuppose that some “authorized person or group of persons” has judged some text or “type of text” to be objectionable on moral, political or other grounds.

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Censorship by Suppression

- Censorship by suppression affects the prohibition of the objectionable material from being:
 - published,
 - displayed,
 - circulated.
- Banning certain kinds of books from being published and prohibiting certain kinds of movies to be made would be examples of censorship by suppression.
- For example, pornography and other objectionable forms of speech would not be allowed to exist on the Internet.

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Censorship by Deterrence

- Censorship by deterrence is a less drastic means of censoring because it:
 - does not suppress or block out objectionable material or forbid it from being published;
 - depends on threats of arrest, prosecution, conviction, and punishment against those who make an objectionable "text" available and those who acquire it;
 - can use heavy fines and possible imprisonment to deter the publication and acquisition of this objectionable content.

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